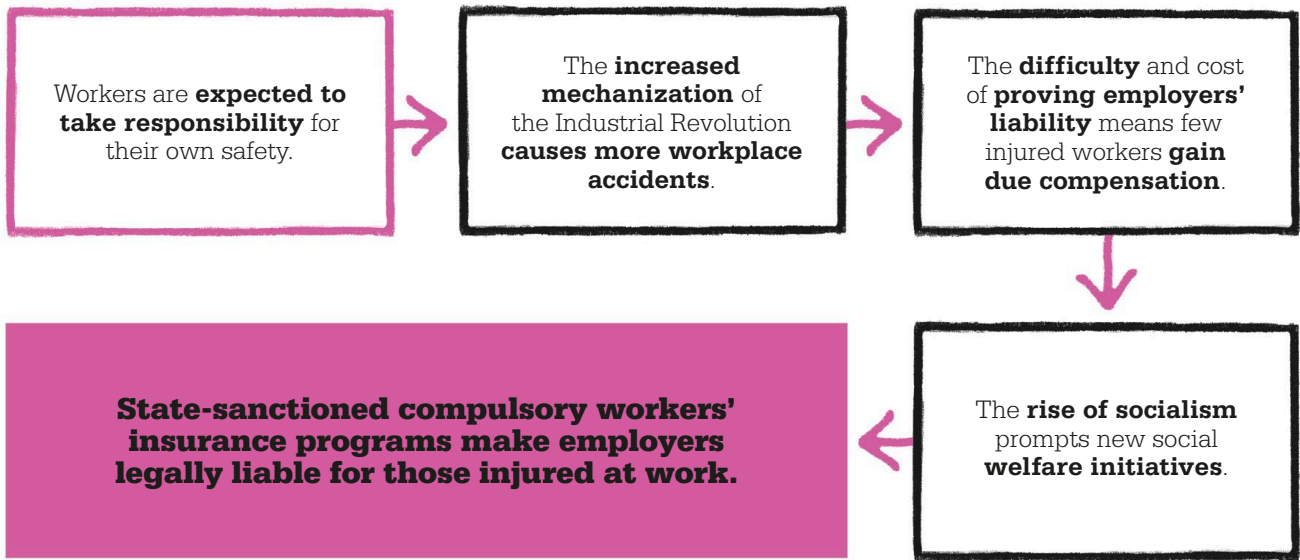




The passing of the 1897 Workmen's Compensation Act rectified this problem by allowing those injured at work to receive compensation so long as they could prove that the injury occurred on the job. This gave British workers the same rights as those enjoyed by workers in Germany.

American legislation

The US, like Europe, experienced a rise in the number of workplace accidents corresponding to huge industrial growth. In 1898 and 1899, American legislators ordered a number of inquiries into European accident liability and compensation schemes and concluded that a system based on the German model would be feasible. In 1908, Congress passed the Federal Employers' Liability Act (FELA). It applied only to railroad workers but was the first piece of national legislation based on legally entitled compensation for the victims of workplace accidents.

Although inspired by the German model, FELA differed in that it still required the worker to prove the fault of the employer. However, the legislation did water

down the defense of contributory negligence, previously open to employers, in which the employee could be denied payment if their actions were deemed to have even partially contributed to the accident.

Soon afterward, individual states began to introduce workers' compensation schemes. Wisconsin was the first, in 1911, and over the next decade, the majority of states followed suit. Unlike FELA, these

statewide laws did allow for no-fault compensation; however, they were voluntary only, as compulsory participation laws had been judged unconstitutional. This changed in 1917, when, in *New York Central Railroad Co. v. White*, the US Supreme Court ruled that compulsory requirements were permitted under the US Constitution. US states could now compel the creation of workers' compensation schemes, and by 1948, all states had introduced compensation laws whereby injured workers no longer had to demonstrate that the employer was at fault.

Although the compensation system adopted by US states was based on the German scheme, on a national level, the US lagged behind Europe in the provision of universal rights for workers. It was not until 1935 that the Social Security Act introduced an old age pension and workers' unemployment and disability benefits. Also, while in Europe the German model developed into state-sponsored healthcare, in the US, a system based on private health insurance was preferred. ■

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It is a reproach
to our civilization
that any class of
American workmen,
should ... be subjected to
a peril of life and limb
as great as that of a soldier.
Benjamin Harrison
23rd US president (1889–1893)